



CHAPTER xii.

An Act to confer further powers on the Wessex Electricity Company and for other purposes.

[22nd May 1940.]

WHEREAS by the Wessex Electricity Act 1927 the Wessex Electricity Company (hereinafter referred to as "the Company") were incorporated and authorised to supply electricity in the area defined in that Act for the purposes to the extent and subject to the conditions stated in that Act and to exercise other powers :

17 & 18
Geo. 5.
c. lxxii.

And whereas by the Wessex Electricity Act 1928 the Wessex Electricity Act 1937 and the Wessex Electricity Special Order 1939 the Company's area of supply has been extended further powers have been conferred on the Company and further provisions enacted with respect to their undertaking :

18 & 19
Geo. 5.
c. xc.
1 Edw. 8.
& 1 Geo. 6.
c. lxxviii.

And whereas the capital of the Company authorised by the said Acts and Order is £3,000,000 and the Company are by those Acts authorised to raise by borrowing on mortgage of their undertaking or by the creation and issue of debentures or debenture stock any sum or sums not exceeding in the whole one-half of the total nominal amount of the ordinary and preference shares and stock (of any class) in the capital of the Company for the time being issued accepted and outstanding and also with the consent of the Electricity

Commissioners any further sum or sums not exceeding in the whole one-half of the total nominal amount of such ordinary and preference shares and stock :

And whereas the issued share and loan capital of the Company consists of—

3,000,000 ordinary shares of £1 each ; and
£1,500,000 3½ per cent. redeemable debenture stock ;
all of which are fully paid :

And whereas by section 9 of the said Act of 1937 which section authorised the Company to issue redeemable preference shares preference stock and debenture stock it is provided that the Company shall not redeem out of revenue any such redeemable capital and it is expedient to repeal that restriction and to empower the Company to provide out of revenue a fund for the redemption of any redeemable capital from time to time issued by them :

And whereas it is expedient to enlarge the powers of the Company with respect to the purchase and cancellation of their loan capital and the application to that purpose of any of their money and funds whether capital or revenue :

And whereas it is expedient that further powers be conferred on the Company and further provisions be enacted with reference to their undertaking as in this Act contained and that the other provisions of this Act be enacted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1.—(1) This Act may be cited as the Wessex Electricity Act 1940.

(2) The Wessex Electricity Acts and Order 1927 to 1939 and this Act may together be cited as the Wessex Electricity Acts and Order 1927 to 1940.

2.—(1) This Act shall be deemed to be a special Act within the meaning of the principal Acts and the Electric Lighting (Clauses) Act 1899 but sections 2 and 3 of the Electric Lighting Act 1888 shall not apply to the undertaking authorised by the existing Acts and this Act or to the Company in relation thereto.

Applica-
tion of
Electricity
Acts.
62 & 63
Vict. c. 19.
51 & 52
Vict. c. 12.

(2) The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 except the provisions thereof which are excepted from incorporation with the Act of 1937 are hereby incorporated with this Act subject as follows:—

- (i) the expression “electric supply company” in section 18 of the schedule as so incorporated shall include any local authority supplying or using electricity for any purpose and that section shall for the purposes of this Act be read and apply accordingly;
- (ii) the provisions of the schedule which are hereby incorporated with this Act shall be incorporated subject to any modifications of those provisions contained in the existing Acts or this Act or in the principal Acts.

(3) Nothing in the foregoing provisions of this section shall affect the application of the Electric Lighting Act 1888 and the said schedule to the undertaking authorised by any Electricity Order of which the Company are for the time being the undertakers or to the Company in relation to any such undertaking.

3. In this Act unless the subject or context otherwise requires words and expressions to which meanings are assigned by the Electric Lighting Act 1882 have the same respective meanings And—

Definitions.
45 & 46
Vict. c. 56.

“the Company” means the Wessex Electricity Company;

“the directors” mean the directors of the Company;

“the Act of 1927” “the Act of 1928” and “the Act of 1937” respectively mean the Wessex Electricity Acts of those respective years;

“the existing Acts” means the Act of 1927 the Act of 1928 and the Act of 1937;

“the principal Acts” “Electricity Order” “the area of supply” and “the undertaking” have the same respective meanings as in the Act of 1937;

“redeemable stock” has the same meaning as in section 9 (Redeemable preference capital and debenture stock) of the Act of 1937;

“consumer” means any person supplied or entitled to be supplied with electricity by the Company.

Redemp-
tion of
redeemable
capital
out of
revenue.

4. Section 9 (Redeemable preference capital and debenture stock) of the Act of 1937 shall be read and have effect as if in subsection (6) thereof the words “The Company shall not redeem out of revenue any redeemable stock but” were omitted.

Redemp-
tion fund.

5.—(1) The Company may from time to time set apart out of revenue such sums as they may consider proper for the purpose of forming a fund for the redemption of any redeemable stock which under the conditions of the issue thereof is redeemable wholly or partly in cash. Provided that the total amount set apart in any year to any fund so formed shall not exceed such amount as would if set apart annually to the fund and accumulated with compound interest calculated at the rate of three per centum per annum with annual rests amount at the end of a period of ten years to the sum required for the redemption of that stock at maturity. Provided also that if any of the moneys and investments from time to time constituting the fund are applied by the Company to the purchase by agreement or to the redemption before the date of maturity of any part of the redeemable stock for the redemption of which the fund has been formed the Company may also in each year after such purchase or redemption until the maturity of such redeemable stock transfer into the fund out of revenue such amount as would have been the sum payable in that year as interest or dividend on that part of the redeemable stock if it had not been redeemed.

(2) The directors may invest any sums set apart or transferred to any fund formed under the last preceding subsection and the income therefrom in any securities in which trustees are for the time being by

law authorised to invest trust funds or in any other securities in which they may be authorised to invest those sums by a resolution passed at a general meeting of the Company or may employ any such sums temporarily for any purposes of the undertaking to which capital is properly applicable.

(3) The moneys and investments from time to time constituting any fund formed under this section shall be applied by the Company to the redemption of the redeemable stock for the redemption of which the fund has been formed in accordance with the conditions of the issue of such redeemable stock. Provided that subject to the conditions of the issue of such redeemable stock any part of the moneys and investments from time to time constituting the fund may be applied by the Company to the purchase by agreement of any part of that redeemable stock at a price not exceeding the price at which such stock or any part thereof could be redeemed at the next redemption date under the conditions of the issue of such stock together with such allowance on account of any interest or dividend which may become payable in respect of such stock at the next date for payment of interest or dividend thereon as may be certified by the Company's auditors to be proper.

(4) Any redeemable stock purchased under the last preceding subsection shall be cancelled and extinguished and shall be deemed for the purposes of section 9 (Redeemable preference capital and debenture stock) of the Act of 1937 to be redeemed stock available for issue under that section.

(5) If at the date of maturity of any redeemable stock the value of the moneys and investments in any fund formed under this section for the redemption of that redeemable stock exceeds the sum required for the redemption of so much of that redeemable stock as is then outstanding the excess shall be applied by the Company to such purposes of the undertaking (whether capital or revenue) as the directors may determine.

6.—(1) The Company may at any time and from time to time purchase by agreement any debentures or debenture stock (redeemable or irredeemable) issued by them under any Act or Order relating to them

Purchase
and can-
cellation
of loan
capital.

and for that purpose may apply any money for the time being in their hands which they are entitled to apply to capital purposes and any other money or funds for the time being in their hands.

(2) (a) Any debentures or debenture stock purchased under the provisions of this section shall be cancelled and extinguished.

8 & 9 Vict.
c. 16.

(b) The amount of any debentures so cancelled and extinguished shall be deemed to be money borrowed and paid off by the Company within the meaning of section 39 of the Companies Clauses Consolidation Act 1845 and the provisions of that section as to re-borrowing by the Company shall apply accordingly.

26 & 27
Vict. c. 118.

(c) When any debenture stock is so cancelled and extinguished the Company may subject to the provisions of Part III of the Companies Clauses Act 1863 as incorporated with the Act of 1927 and the Act of 1937 and of section 12 (Debenture stock) of the Act of 1927 re-issue that debenture stock or issue in lieu thereof other debenture stock (redeemable or irredeemable) not exceeding the nominal amount of the debenture stock so cancelled and extinguished.

(3) Section 18 (Purchase and cancellation of Company's securities) of the Act of 1927 is hereby repealed.

Saving for
emergency
powers of
Treasury.
2 & 3
Geo. 6. c. 62.

7. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 it shall not be lawful to exercise the powers of borrowing conferred by this Act without such consent.

Power of
entry for
substitu-
tion of
electric
lines &c.

8. In any case in which the proper and efficient supply of electricity necessitates the substitution of a new electric line or other work situate in or upon the private property of a consumer the Company after giving forty-eight hours' notice in writing under the hand of the secretary or other duly authorised officer of the Company to the occupier or if there be no occupier then to the owner or lessee of any house building or land in or upon which such electric line or work is laid or fixed may enter such house building or land between

the hours of nine in the morning and four in the afternoon or with the authority in writing of a justice at any other time for the purpose of effecting such substitution repairing all damage caused by such entry or substitution :

Provided that the Company shall not exercise the powers of this section in respect of any premises which form part of the railway of any railway company or railway committee or of the canal of any canal company except with the consent of such company or committee.

9. If any question shall arise under section 23 of the Electricity (Supply) Act 1922 in relation to the Company as to whether a supply of electricity is demanded or received for the purpose of a stand-by supply only or as to whether a supply of electricity or of gas steam or other form of energy is in use or ready for use for the purposes for which a stand-by supply of electricity is required the question shall in default of agreement be determined by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882.

For determining
stand-by
supplies.
12 & 13
Geo. 5. c. 46.

10. Except in the case of electricity supplied in pursuance of any agreement the maximum electrical power with which any consumer shall be entitled to be supplied by the Company shall not include any supply of electricity taken on extraordinary occasions unless the consumer shall pay to the Company such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Company in order to meet the possible maximum demand for the premises of the consumer Any question as to whether the provisions of this section apply and if so the sum to be paid shall in default of agreement be determined by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882.

As to
maximum
power
which may
be
demanded.

11. Section 47 (Limitation on powers of supply) of the Act of 1927 shall be read and have effect as if the words "without the consent of those distributors" were omitted from subsection (1) of that section and the following words were substituted therefor:—

Amend-
ment of
section 47
of Act of
1927.

"until they have obtained the consent of the
"authorised distributors for that place."

Transfer
of under-
takings to
Company.

12. Section 69 (Transfer of undertakings of other undertakers to Company) of the Act of 1927 as amended by section 29 (Transfer of undertakings to Company) of the Act of 1937 shall after the passing of this Act have effect as if the words "which has been or may" prior to the year nineteen hundred and thirty-eight "be confirmed or approved by Parliament" were omitted therefrom.

Compensa-
tion for
depriva-
tion of em-
ployment.
9 & 10
Geo. 5.
c. 100.
16 & 17
Geo. 5. c. 51.
19 & 20
Geo. 5. c. 4.

13.—(1) The provisions of section 16 of the Electricity (Supply) Act 1919 as modified and set forth in the Fourth Schedule to the Electricity (Supply) Act 1926 and as amended by the Electricity (Supply) Act 1928 shall extend and apply in the case of the acquisition by the Company under the powers conferred by section 69 (Transfer of undertakings of other undertakers to Company) of the Act of 1927 as amended by section 29 (Transfer of undertakings to Company) of the Act of 1937 and further amended by the last preceding section of this Act of any undertaking or part of any undertaking authorised by an Electricity Order confirmed or approved by Parliament subsequent to the year nineteen hundred and twenty-eight as if such acquisition were an acquisition of a generating station under or in consequence of the Electricity (Supply) Act 1926.

For the purposes of this subsection the Fourth Schedule to the said Act of 1926 shall be read and have effect as if the words "employed on an annual salary" in the proviso to that schedule were omitted and the expression "officer" meant a person employed in the performance of administrative professional clerical supervisory or technical duties not being a person employed by way of manual labour at a weekly or less than a weekly wage.

(2) Section 31 (Compensation for deprivation of employment) of the Act of 1937 is hereby repealed.

(3) Nothing in this section shall prejudice or affect the operation of section 85 (Compensation for deprivation of employment) of the Act of 1927.

Proxies of
corporate
bodies.

14.—(1) Section 76 of the Companies Clauses Consolidation Act 1845 relating to the appointment of proxies shall in its application to the Company have

effect as though the following proviso were added thereto in lieu of the proviso contained in section 2 of the Companies Clauses Consolidation Act 1888 as amended by the Companies Clauses Consolidation Act 1889 (viz.):—

51 & 52
Vict. c. 48.
52 & 53
Vict. c. 37.

“ Provided that where the shareholder is a body corporate the proxy may be any member or officer of such body though not personally a shareholder in the Company.”

(2) Subsection (3) of section 15 (Voting at general meetings) of the Act of 1937 is hereby repealed.

15.—(1) The directors may close the register of transfers of ordinary or preference shares or stock of any class or any file of such transfers kept by the Company in lieu of any such register pursuant to section 23 (Registers of transfers) of the Act of 1937 for a period not exceeding fourteen days previous to the payment of any dividend on any such shares or stock and may close the register of transfers of debenture stock debentures or mortgages of the Company of any class or any file of such transfers kept by the Company in lieu of any such register pursuant to the said section 23 for a period not exceeding fourteen days previous to the payment of any interest on any such debenture stock debentures or mortgages and the directors may in any such case fix a day for the closing of any register or file which they are authorised to close under the provisions of this section Seven days' notice of the closing of any such register or file shall be given by advertisement in some newspaper published and circulating within the area of supply.

Closing of
transfer
books.

(2) Any transfer of any shares stock debenture stock debentures or mortgages lodged for registration with the Company while the register or file of transfers relating to shares stock debenture stock debentures or mortgages of the same class is so closed shall as between the Company and the person claiming under the transfer but not otherwise be considered as made subsequently to the payment of any such dividend or interest.

(3) Section 33 (Closing of transfer books) of the Act of 1927 and section 18 (Closing of transfer books) of the Act of 1928 are hereby repealed.

Saving
rights of
duchy of
Cornwall.

16. Section 27 (Saving rights of duchy of Cornwall) of the Act of 1928 shall extend to and apply for the purposes of this Act as if that section were re-enacted in this Act.

Costs of
Act.

17. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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